

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
RICHMOND, CA
DEPARTMENT 14, RICHMOND
HEARING DATE: 01/06/2026

ALL APPEARANCES WILL BE BY ZOOM

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances will be by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested and include specification to be argued.

Zoom hearing information

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Law & Motion

1. 9:00 AM CASE NUMBER: L23-04027

CASE NAME: MCT GROUP VS. DAVID MARTINEZ, JR.

*HEARING ON MOTION IN RE: VACATE DEFAULT AND DEFAULT JUDGMENT

FILED BY: MARTINEZ, DAVID, JR.

TENTATIVE RULING:

Defendant and Judgment Debtor David Martinez Jr. (“Defendant”) filed a Motion to Vacate Default and Default Judgment on November 18, 2025 (“Motion to Set Aside Default”). The Motion to Set Aside Default was set for hearing on January 6, 2026. The motion is opposed.

Background

Plaintiff and Judgment creditor MCT Group (“Plaintiff”) filed a Complaint on July 31, 2023.

A Proof of Service of Summons was filed May 13, 2024 (the “5/13/24 POSS”). The 5/2/16 POSS reflects substitute service on Defendant on January 17, 2024 at an address of 133 Hemlock Ct, Hercules, California (the “133 Hemlock Court Address”), by delivery to “JANE DOE’ - CO-OCCUPANT” Jane Doe. 5/13/24 POSS, ¶¶3-5. The service was done by a registered process server. *Id.* at ¶7.

A default was entered against Defendant on May 13, 2024 (the “Default”). Thereafter, a request for entry of a default judgment was submitted to the Court and a default judgment was entered on August 21, 2024 (the “Default Judgment”).

Defendant’s motion is supported by Defendant’s Declaration filed November 18, 2025 as

part of the Motion to Set Aside Default (the “Supporting Declaration”).

Plaintiff filed an opposition to Defendant’s Motion to Set Aside Default on December 10, 2025, including an opposition Declaration of Peter Christopher Bulpitt (“Opposition Declaration”).

Analysis

1. Lack of Actual Notice of the Pending Lawsuit.

Defendant seeks relief under Code of Civil Procedure section 473.5.

Code of Civil Procedure section 473.5 allows a party to bring a motion to set aside a default entered against the party where “service of a summons has not resulted in actual notice to a party in time to defend the action.” Code Civ. Proc. § 473.5(a). The motion “shall be accompanied by an affidavit showing under oath that the party’s lack of actual notice in time to defend the action was not caused by his or her avoidance of service or inexcusable neglect.” *Id.* § 473.5(b).

Defendant cannot, at this stage, obtain relief under Code of Civil Procedure section 473.5 because such relief is time barred. There are certain deadlines for a defendant to bring a motion to set aside a default under Code of Civil Procedure section 473.5. See Code Civ. Proc. § 473.5(a) (“The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against him or her; or (ii) 180 days after service on him or her of a written notice that the default or default judgment has been entered.”).

Notice of entry of the Default Judgment was served on Defendant at the 133 Hemlock Court Address on October 17, 2024:

- | | |
|---|---------------------------|
| 3. The Notice of Entry of Judgment or Order was mailed: | |
| a. on (date): | 10/17/2024 |
| b. from (city and state): | Torrance, CA |
| 4. The envelope was addressed and mailed as follows: | |
| a. Name of person served: | c. Name of person served: |
| David Martinez, Jr., et al. | |
| Street address: 133 Hemlock Court | Street address: |
| City: Hercules | City: |
| State and zip code: CA 94547 | State and zip code: |

See Notice of Entry of Judgment filed October 17, 2024, ¶4. 180 days after service on Defendant was April 15, 2025.

Defendant’s Motion to Set Aside Default was not filed until November 18, 2025 and was then served on November 20, 2025. It is evident that by any possible calculation, the time has long passed for Defendant to obtain relief under Code of Civil Procedure section 473.5.

Of course, this turns on the conclusion that the 133 Hemlock Court Address was a valid mailing address for service of court papers on Defendant at the time. Having considered all of the evidence, the Court finds that 133 Hemlock Court Address was a valid mailing

address for service on Defendant at the time, for the reasons discussed further below.

Even if the relief sought was not time barred, the Court would deny it. The service was done by a registered process server. See 5/2/16 POSS at ¶7. This raises a presumption of valid service. See *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795 (the filing of a proof of service creates a rebuttable presumption that the service was proper).

Having considered all of the evidence before the Court, the Court does not conclude that Defendant has rebutted the presumption of valid service.

Defendant asserts that he “was never served with the summons and complaint” because he “did not reside at that address and had no contact with” the 133 Hemlock Court Address. See Supporting Declaration, ¶¶2-4. He further asserts that he does not know “Jane Doe” and “never received actual notice of this lawsuit until after default judgment.” *Id.* at ¶¶5-6.

The Court does not find these statements credible.

The Opposition Declaration proffers a letter written to plaintiff with a date of March 1, 2024. See Opposition Declaration, ¶4 and Exhibits. That was a little more than a month after the service was done. The letter included copy of Defendant’s Driver’s License which reflected the 133 Hemlock Court Address. *Id.*

Although the letter makes reference to a PO Box ending –71 in Concord, CA (the “Concord PO Box”), nothing in the letter states that Defendant was not residing at the 133 Hemlock Court Address at the time. Moreover, the letter tends to show that Defendant had actual notice by that time that he was being sued by MCT Group, as he offers no explanation why, suddenly, he makes demands for information to “validate” the “claim.”

Plaintiff’s evidence also reflects that it sought confirmation from the US Postal Service, both before and after the time of service, as to the physical address associated with the Concord PO Box. See Opposition Declaration, ¶6 and Exhibits. Both times, the Concord PO Box was associated with the 133 Hemlock Court Address. *Id.*

Defendant’s narrowly tailored assertions about having “no contact with” the 133 Hemlock Court Address are belied by his clear association with the address by virtue of actively using the Concord PO Box tied to that address and, at some point, having lived there as shown by his California Driver’s License and other evidence. Defendant’s credibility is undermined by his failure to affirmatively describe the nature and extent of his association with the 133 Hemlock Court Address, both historically and at the time of the service. Frankly, the totality of the evidence smacks of gamesmanship on Defendant’s part.

*The moving papers do not establish that any longer time limits apply here, such as Civil Code section 1788.61 which provides that “[n]otwithstanding Section 473.5 of the Code of Civil Procedure, if service of a summons has not resulted in actual notice to a person in time to defend an action brought by a debt buyer and a default or default judgment has been entered against the person in the action, the person may serve and file a notice of

motion and motion to set aside the default or default judgment and for leave to defend the action.” Civ. Code § 1788.61(a)(1). This statute contains potentially longer outside time limits. See *id.* at § 1788.61(a)(2) [relief must be sought within a reasonable time, but in no event exceeding the earlier of: (a) six years after entry of the default or default judgment against the person or (b) one hundred eighty days of the first actual notice of the action]. These longer time periods only apply in cases involving a plaintiff “debt buyer.” Here, Plaintiff’s suit expressly alleged that it was not a debt buyer within the meaning of the statute. See Complaint, ¶13. But, even if these time periods did apply, the relief would be barred by Defendant’s having failed to seek relief within 180 days from the first actual notice which the Court finds was no later than the time of service of notice of entry of the Judgment to the 133 Hemlock Court Address in October 2024, such address the Court finds was actually associated with Defendant.

2. Defendant Fails to Establish that the Default Resulted from Mistake, Inadvertence, Surprise, or Excusable Neglect.

Defendant also seeks relief under Code of Civil Procedure section 473(b).

Under Code of Civil Procedure section 473(b), the Court may, in its discretion, relieve a party from a default judgment resulting from “his or her mistake, inadvertence, surprise, or excusable neglect.” Code Civ. Proc., § 473(b); *Rivercourt Co. Ltd. v. Dyna-Tel, Inc.* (1996) 41 Cal.App.4th 1477, 1480 (“*Rivercourt*”). A motion seeking relief under section 473 is addressed to the sound discretion of the trial court. *Rivercourt, supra*, 41 Cal.App.4th at 1480. Neither mistake, inadvertence, nor neglect will warrant relief unless upon consideration of all of the evidence it is found to be excusable. *Conway v. Municipal Court* (1980) 107 Cal.App.3d 1009, 1017. The party seeking relief under section 473(b) bears the burden of establishing that the mistake, inadvertence, surprise or neglect was excusable. *Id.*

First, the evidence proffered by Defendant does not describe any specific mistake, inadvertence, surprise, or excusable neglect that led to the Default and/or Default Judgment. It simply asserts that no notice was received based on the service done. Therefore, there are no grounds for relief under Code of Civil Procedure section 473(b).

Second, even if grounds for relief under Code of Civil Procedure section 473(b) were shown, such relief is also barred by the passage of time.

Relief under Code of Civil Procedure section 473(b) must be brought within a reasonable time, but no later than six months after entry of the default judgment. Code Civ. Proc., § 473(b) (“Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.”); see CJER, *California Judges Benchbook: Civil Proceedings—After Trial* (2024) (“CJER Civ. Pro.—After Trial”), § 1.16.

Defendant failed to bring this motion within six months after entry of the Default Judgment.

3. Defendant Fails to Establish that the Default and Entry of Default Judgment Thereon Should be Set Aside as Void.

Lastly, to the extent the relief requested by Defendant is a request to vacate a judgment void for lack of service under Code of Civil Procedure section 473(d), the Court denies such relief.

The Court has authority to vacate a void judgment pursuant to Code of Civil Procedure section 473(d). See Code Civ. Proc. § 473(d) (“The court ... may, on motion of either party after notice to the other party, set aside any void judgment or order.”); see also *Sindler v. Brennan* (2003) 105 Cal.App.4th 1350, 1353 [a judgment void on its face because rendered when the court lacked personal or subject matter jurisdiction or exceeded its jurisdiction in granting relief which the court had no power to grant is subject to collateral attack at any time and may be set aside under Code of Civil Procedure section 473, subdivision (d)].

In addition, a judgment may be set aside by a court if it has been established that extrinsic factors have prevented one party to the litigation from presenting their case. *In re Marriage of Park* (1980) 27 Cal.3d 337, 342. The grounds for such equitable relief are commonly stated as being extrinsic fraud or mistake. *Id.* Those terms are given a broad meaning and tend to encompass almost any set of extrinsic circumstances which deprive a party of a fair adversary hearing. *Id.*; see also *Aldabe v. Aldabe* (1962) 209 Cal.App.2d 453, 474 (“Fraud or mistake is extrinsic when it deprives the unsuccessful party of an opportunity to present his case to the court.”) quoting *Westphal v. Westphal* (1942) 20 Cal.2d 393, 397. A party seeking relief under the court's equitable powers must satisfy the elements of a “stringent three-pronged test”: (1) a satisfactory excuse for not presenting a defense, (2) a meritorious defense, and (3) diligence in seeking to set aside the default. *Kramer v. Traditional Escrow, Inc.* (2020) 56 Cal.App.5th 13, 29.

A motion to set aside a void default judgment may be filed at any time. See CJER Civ. Pro.—After Trial, § 1.82; see also *California Capital Ins. Co. v. Hoehn* (2024) 17 Cal.5th 207, 216.

For the reasons addressed at length above, the Court does not conclude that service of process on Defendant was void or somehow defective. Defendant has not rebutted the presumption of valid service and has not otherwise shown grounds for setting aside the Default Judgment under Section 473(d).

Disposition

The Court finds and orders as follows:

1. The Motion to Set Aside Default is DENIED.
2. The Court shall issue the order after hearing.